

Surendra Keshari @ Surendra Kumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 14 February 2023 · WRIT - C No. - 3018 of 2023 · **Consent disposal; apply to EE for 6.14 instalments.**

HEADNOTE

Writ against a recovery citation disposed of by consent after the consumer accepted the dues and sought only easy instalments. He must apply within two weeks to the Executive Engineer; the Court hopes instalments will be fixed under Section 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Surendra Keshari alias Surendra Kumar filed Writ-C No. 3018 of 2023 against the State of Uttar Pradesh and the U.P. Power Corporation, seeking quashing of the Executive Engineer's recovery citation dated 29 July 2022, a restraint on recovery, and a decision on his representation of 14 January 2023. The petition was adjourned on 30 January 2023 for the licensee to obtain instructions. On 14 February 2023 counsel stated that the entire outstanding amount was accepted and that only easy instalments were sought.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments of accepted electricity dues

HOLDING

Once the consumer accepts the outstanding electricity dues and seeks only an instalment facility, a writ for certiorari against the recovery citation and for a restraint on recovery is disposed of by consent. The consumer must move an application within two weeks before the Executive Engineer. The Court hopes and trusts that easy instalments will then be fixed strictly in accordance with Section 6.14 of the U.P. Electricity Supply Code, 2005, as the licensee undertook. ¶ 2-3

PRINCIPLE TAGS

clause-6.14-instalments-on-accepted-dues

Liability having been accepted, the writ was disposed by consent and the consumer was left to apply within two weeks to the Executive Engineer for easy instalments, which the licensee undertook to consider strictly under Section 6.14 of the Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY CITATION DATED 29 JULY 2022

Not examined. The petitioner accepted the outstanding liability and the writ was disposed by consent. ¶ 2-3

NOT DECIDED — THE REPRESENTATION DATED 14 JANUARY 2023

Not decided on merits. The petitioner was directed to move a fresh application before the Executive Engineer within two weeks. ¶ 3

NOT DECIDED — THE NUMBER AND TERMS OF INSTALMENTS

Left to the Executive Engineer under Section 6.14 if the application is moved within two weeks. ¶ 3

